# Notification Waiver Determination

## EQT Fund Management – Corza Biosurgery

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| **Acquisition** | EQT Fund Management S.à r.l. (**EFMS**), through two holding companies indirectly owned by investment fund EQT X, Seal US Holdings Inc. and Ruby BidCo GmbH, applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Corza Medical's biosurgery business unit (**Corza Biosurgery**), as described in the transaction documents provided as part of the application (the **Acquisition**). |
| **Determination** | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified. |
| **Date of determination** | 11 August 2026 |

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| **Parties to the Acquisition** | The acquirers, Seal US Holdings Inc. and Ruby BidCo GmbH, are indirectly wholly owned by EQT X, a private investment fund controlled by EFMS, an alternative investment fund manager. EQT X is part of the EQT group of investment funds and seeks to make investments primarily in Europe but will also target suitable investment opportunities in the US, with a focus on the healthcare, technology and business services sectors.<br>The target, Corza Biosurgery, consists of Corza Medical GmbH,[1] Corza Medical GmbH,[2] Corza Medical S.A.S, Corza Medical S.L.U, GTCR (Topaz) AcquisitionCo AS, Topaz Investment AS, Corza Medical S.r.l., Corza Medical sp z.o.o, Corza Medical B.V., and Seal US Holdco LLC, which engage in the manufacturing and selling of TachoSil.<br>TachoSil is a fibrin sealant patch used during surgical procedures to achieve haemostasis and seal tissue surfaces (including the cut surfaces of internal organs), to provide suture support in vascular surgery where conventional surgical techniques are insufficient, and, in neurological surgery, to seal the dura mater and prevent postoperative cerebrospinal fluid leakage. |
| **Explanation for determination** | In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). |

[1] A Swiss entity.

[2] A German entity.

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| | Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:<br>a. there is no horizontal overlap in Australia between the acquirer (or its connected entities) and Corza Biosurgery in the supply of haemostatic and tissue sealing products<br>b. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition.<br>The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.<br>While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.<br>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.<br>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines. |

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act**